

OREGON STATE HOSPITAL

POLICY

SECTION 6: Patient Care **POLICY: 6.044**

SUBJECT: Guardianship

POINT PERSON: Social Work Director

APPROVED: Sara Walker, MD

DATE: JULY 31, 2024


Interim Superintendent

SELECT ONE: ☐ New policy

☒ Minor/technical revision of existing policy

☐ Reaffirmation of existing policy

☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. As delineated in Oregon Revised Statute (ORS) chapter 125, Oregon State Hospital (OSH) must provide guardians with the same rights as patients in the area(s) of authority designated by the court unless another authority's power overrides the court order (e.g., a civil commitment order can override a guardian's authority to remove a patient from OSH). In all OSH policies, references to patient decisions are understood to include the patient and/or their guardian, to the extent their decisions are authorized by court documents.
- B. This policy applies to all staff.

II. POLICY

- A. A patient who receives a guardian maintains all legal and civil rights provided by law (such as the right to contact an attorney, the right to vote, and to have access to their own records) except those that have been specifically granted to the guardian by the court or limited by a court order. Any OSH consent forms or releases should be sent to the guardian for review and signature/approval.
- B. OSH recognizes that guardianship may be appropriate for a patient who is determined by a court to be incapacitated, unable to give informed consent, in danger to themselves or others, and for whom other less restrictive alternatives have been determined to be insufficient to meet their needs.
- C. In the cases where OSH pursues guardianship, OSH will only pursue

guardianship for patients who are currently under civil commitment or under the jurisdiction of the PSRB. OSH will not pursue guardianship for patients under ORS 161.370, unless it is determined that an emergency guardianship is necessary.

- D. The patient must be notified of their right to object to the appointment of a guardian and to have a hearing before the judge if they object to the guardianship proceeding as part of the legal proceedings
- E. OSH must allow a court visitor to interview the patient and staff to determine whether a guardian is needed for the patient.
- F. Any person or entity that has guardianship must provide OSH with a copy of the order of guardianship by the courts
- G. This policy applies to all staff, including employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at OSH.
- H. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- I. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Court visitor" means an independent investigator appointed by the court to meet with the patient and talk with doctors, caregivers, family members, and others who may have relevant information about whether a guardian is needed.
- B. "Emergency or temporary guardianship" means a temporary guardian who may be appointed for a limited period of time by the court if the patient is found to meet all three of the following criteria: 1) the patient is considered incapacitated; 2) there is immediate and serious danger to the patient's life/health; and 3) the patient's welfare requires immediate action.
- C. "Family" in this policy means a person or persons who play a significant role in an individual's life. A family is a group of two or more persons united by blood or adoptive, marital, domestic partnership, or other legal ties. The family may also be a person or persons not legally related to the individual (such as a significant other, friend, or caregiver) whom the individual personally considers to be family. A family member may be the surrogate decision-maker if

authorized to make care decisions for the individual should they lose decision-making capacity or choose to delegate decision making to another.

- D. Guardianship Determination Team (GDT) means a person or persons who consult with IDT members, review referrals, and make the determination on whether OSH will pursue guardianship, including whether or not OSH will pay for initial court costs for guardianship. “Guardian” in this policy means an adult appointed by a court to make important decisions for a patient for his or her care and well-being.
- E. “Incapacitated” in accordance with ORS 125.005 means the patient has a condition in which his or her ability to receive and evaluate information effectively, or to communicate decisions, is impaired to such an extent that the patient presently lacks the capacity to meet the essential requirements for the person’s physical health or safety. “Meeting the essential requirements for physical health and safety” means those actions necessary to provide the health care, food, shelter, clothing, personal hygiene, and other care without which serious physical injury or illness is likely to occur.
- F. “Staff” includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. PROCEDURES

Procedures A Guardianship Procedures

V. REFERENCES

Disability Rights Oregon. (2009). *Guardianship Handbook: Protected Proceedings for Adults*.

Oregon Revised Statutes §§ 125.005 — 125.525.